# PANJAB UNIVERSITY, CHANDIGARH

**(Estted. under the Panjab University Act VII of 1947- enacted by the Govt. of India)**

# FACULTY OF ARTS

# SYLLABI

# FOR

# M.A. HUMAN RIGHTS AND DUTIES (SEMESTER SYSTEM)

# EXAMINATIONS, 2018-19

**- : 0 :-**

**GUIDELINES FOR CONTINUOUS INTERNAL ASSESSMENT (20%) FOR REGULAR STUDENTS OF POSTGRADUATE COURSES OF M.A. HUMAN RIGHTS AND DUTIES (SEMESTER SYSTEM)**

***(Effective since the First Year Admissions for the Academic Session 2007-2008)***

1. The Syndicate has approved the following guidelines, mode of testing and evaluation including Continuous Internal Assessment of students :

(i) Terminal Evaluation : 80 %
(ii) Continuous Assessment : 20 %
(iii) Continuous Assessment includes written assignment, snap tests, participation in discussions in the class, term papers, attendance etc.
(iv) In order to incorporate an element of Continuous Internal Assessment of students, the Colleges/Departments will conduct one written test as quantified below :

(a) Written Test : 25 (reduced to 5)
(b) Snap Test : 25 (reduced to 5)
(c) Term Paper : 25 (reduced to 5)
(d) Participation in Class discussions : 15 (reduced to 3)
(e) Attendance : 10 (reduced to 2)

**Total : 100 (reduced to 20)**

2. Weightage of 2 marks for attendance component out of 20 marks for Continuous Assessment shall be available only to those students who attend 75% and more of classroom lectures/seminars/ workshops. The break–up of marks for **attendance component** for theory papers shall be as under :

*Attendance Component Mark/s for Theory Papers*

(a) 75 % and above up to 85 % : 1
(b) Above 85 % : 2

3. It shall **not be compulsory** to pass in Continuous Internal Assessment. Thus, whatever marks are secured by a student out of 20% marks, will be carried forward and added to his/her score out of 80 %, i.e. the remaining marks allocated to the particular subject and, thus, he/she shall have to secure pass marks both in the University examinations as well as total of Internal Continuous Assessment and University examinations.

4. Continuous Internal Assessment awards from the affiliated Colleges/Departments must be sent to the Controller of Examinations, by name, **two weeks before** the commencement of the particular examination on the *proforma* obtainable from the Examination Branch.

**SPECIAL NOTE:**

(i) The theory question paper will be of 80 marks and 20 marks will be for internal assessment.

(i) In the case of Postgraduate Courses in the Faculties of Arts, Science, Languages, Education, Design & Fine Arts, and Business Management & Commerce (falling under the purview of Academic Council), where such a provision of Internal Assessment/Continuous Assessment already exists, the same will continue as before.

(ii) The marks obtained by a candidate in Continuous Internal Assessment in Postgraduate Classes since the admissions of 2007 have been shown separately in the Detailed-Marks-Card (D.M.C.).

## PANJAB UNIVERSITY, CHANDIGARH

**OUTLINES OF TESTS, SYLLABI AND COURSES OF READING IN THE SUBJECT OF HUMAN RIGHTS AND DUTIES, FOR M. A. I & III SEMESTERS EXAMINATIONS, NOVEMBER/ DECEMBER 2018 AND M. A. II & IV SEMESTERS EXAMINATIONS, APRIL/MAY 2019.**

The course consists of 14 core (compulsory) papers and 2 optional papers. Following a semester system, each semester will consist of four papers. The first, second and third semesters will consist of four core theory papers each . In the last semester there shall be three theoretical and one field based paper. Semesters I and II shall each consist of 4 core papers whereas Semesters III and IV would also include one optional paper in addition to three core papers. In Semester IV, along with core optional theory papers, there will also be one paper on field based dissertation. As regards distribution of marks out of a total of 100 marks assigned for each theory paper, the written examination shall carry 80 marks whereas internal assessment shall carry 20 marks. However, in case of field based dissertation paper in Semester IV, the dissertation shall carry 80 marks and viva voce shall carry 20 marks.

Aggregate marks of Semesters I-IV shall be 1600 and aggregate credits for the same shall be 16.

### LIST OF PAPERS

### SEMESTER I

Core Paper 1 – Historical, Theoretical and Philosophical Perspectives on Human Rights and Duties

Core Paper 2 – United Nations Human Rights System

Core Paper 3- Human Rights and Duties in India

Core Paper 4 – Children and Human Rights

### SEMESTER II

Core Paper 5 - Development, Globalization and Human Rights

Core Paper 6 – Women and Human Rights

Core Paper 7 - Environment, Human Rights and Duties

Core Paper 8 – Civil Society and Human Rights Movements in India

## *M.A. HUMAN RIGHTS AND DUTIES*

**SEMESTER III**

Core Paper 9 - Science and Technology, Human Rights and Duties

Core Paper 10 - Human Rights and Duties for the Aged and the Differently abled

Core Paper 11 – Research Methods

Core Paper 12 - The candidate has to opt for any **ONE** of the following optional papers:

Optional Paper I (a) – Labour Welfare, Human Rights and Duties
Optional Paper I (b) - International Humanitarian and Refugee Laws
Optional Paper I (c) - Disadvantaged Sections/Groups and Human Rights and Duties

**SEMESTER IV**

Core Paper 13 – Rights of the Displaced People and their Rehabilitation

Core Paper 14 – Human Rights and Criminal Justice System

Core Paper 15 – Fieldwork Based Dissertation*****

Core Paper 16 - The candidate has to opt for any ONE of the following optional papers:

Optional Paper II (a) - Minorities, Human Rights and Duties
Optional Paper II (b) – Human Rights Advocacy Skills
Optional Paper II (c) - Peoples' Right to Self-Determination

*****The student shall be required to write a dissertation on any aspect of a human rights and duties problem/situation. The student shall visit the problem area(s) and study the situation, causes, and solutions, people's responses and students' own experiences of human rights violations, if any. The student shall study the relevant literature and write a report on the approved topic with the help of theoretical discussions on research methodology. Field Work based Dissertation will be in Semester IV and will be of 100 **marks**. Out of 100 marks, dissertation will carry **80 marks** and viva-voce examination will be of **20 marks**. The viva-voce examinations in the dissertation shall be held after the written examination of Semester IV and the students shall have to submit the dissertation by the end of month of **March** on the date specified by the Department.

*M.A. HUMAN RIGHTS AND DUTIES: FIRST SEMESTER*

**SEMESTER I**

**CORE PAPER 1: HISTORICAL, THEORETICAL AND PHILOSOPHICAL PERSPECTIVES ON HUMAN RIGHTS AND DUTIES**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

This paper, introduces the student to the a) theoretical, conceptual, historical and other general aspects of human rights and duties, b) United Nations and human rights and c) international and regional concerns for human rights.

**Course Contents**

**Unit I: Human Rights- Philosophical Perspectives**

Meaning, nature, and classification of rights; Universal Human Values: Dignity, Justice and Equality.

**Unit II: Human Rights- Historical Perspectives**

Magna Carta; British Bill of Rights; French and American Declarations; The UN Charter; International Bill of Rights; Regional Mechanisms on Human Rights: European Convention, American Convention, African Charter and the Arab League.

**Unit III: Human Rights- Theoretical Perspectives**

Natural Rights theory; Liberal theory of rights; Legal/Positivist theory of Rights; Marxist theory of rights; Sociological theory of Rights; and Cultural theory of Rights.

**Unit IV: Human Rights, Duties and Responsibilities**

Concept of Duties and Responsibilities; Relationship between Rights and Duties; Classification of Human duties and responsibilities: General - (a) Moral, ethical, social, economic, political and cultural (b) Universal (c) Traditional/Modern; The U.N. Declaration on Human Duties and Responsibilities (DHDR) of Individuals, Groups and Organs to promote and protect Human Rights and Fundamental Freedoms, 1998.

## References

**Essential Readings:**

Alston, Phillip (ed.) (1992), *The United Nations and Human Rights: A Critical Appraisal,* Oxford: Clarendon Press.

Baehr, Peter R. (1999), *Human Rights: Universality in Practice,* New York: Palgrave.

Baxi, Upendra (2002), *The Future of Human Rights,* New Delhi: Oxford University Press.

Bhagwati, P.N. (1987), *Dimensions of Human Rights,* Madurai: Society for Community Organization Trust.

Davidson, Scott (1993), *Human Rights,* Buckingham: Open University Press.

Donnelly, Jack (1989), *Universal Human Rights in Theory and Practice,* Ithaca: Cornell University Press.

Donnelly, Jack (2013), *International Human Rights,* Colorado: West view Press.

Dube, M. P. and Neeta Bora (ed.)(2000), *Perspectives on Human Rights,* New Delhi: Anamika Publishers.

Freeman, Michael (2003), *Human Rights: An Interdisciplinary Approach,* Cambridge:Polity Press.

Hargopal, G. (1999), *Political Economy of Human Rights,* Hyderabad: Himalaya.

Jacobs, Francis G. and R.C.A. White (1996), *The European Convention on Human Rights,* Oxford: Clarendon University Press.

Kannabiran, K. G. (2003), *The Wages of Impunity*: *Power, Justice and Human Rights,* New Delhi: Orient Longman.

Mazzini, Joseph, (1890) *Essays on the duties of man,* Lahore, Anglo-Sanskrit Pr.

Neier, Aryeh (2012), *The International Human Rights Movement: A History*, New Jersey, Princeton University Press.

Whelan, Daniel J (2010), *Indivisible Human Rights: A History*, United States: University of Pennsylvania Press.

**Further Readings:**

Kothari, Smitu and Harsh Sethi (ed.) (1991), *Rethinking Human Rights: Challenge for theory and Action,* Lokayan, Delhi.

Krasno, Jean A. (2005), *The United Nations,* New Delhi: Viva.

Langley, Winstone E. (1999), *Encyclopedia of Human Rights Issues since 1945,* London: Fitzroy Dearborn Publishers.

Lauterpacht, Hersch (1945), *An International Bill of the Rights of Man,* New York: Columbia University Press.

Morsink, Johannes (1999), *The Universal Declaration of Human Rights: Origins,Drafting and Intent,* Philadelphia: University of Pennsylvania Press.

O'Byrne, Darren J. (2003), *Human Rights: An Introduction,* New Delhi: Pearson. Sanajaoba, N. (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.

Tuck, R. (1979), *Natural Rights Theories,* Cambridge: Cambridge University Press.

UN Centre for Human Rights (1996), *International Human Rights Standards for Law Enforcement*, Geneva: World Campaign for Human Rights.

UN Centre for Human Rights (1990), *Special Issue on Implementation of International Human Rights Instruments*, New York.

UN Centre for Human Rights (1996), *The International Bill of Human Rights,* Geneva: World Campaign for Human Rights

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Vijapur, A.P. (1996), *The United Nations at Fifty: Studies in Human Rights,* New Delhi: South Asian Publishers.

**Core Paper 2 : UNITED NATIONS HUMAN RIGHTS SYSTEM**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e, out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives:**

The paper provides an overview of the United Nations human rights architecture and offers basic knowledge regarding the work of various UN human rights mechanisms. It focuses on how the Human Rights Council functions and the various functions taken by the Office of High Commissioner of Human Rights (OHCHR) for the promotion and protection of human rights. The Universal Periodic Review and India's role also forms a major component of this paper.

*M.A. HUMAN RIGHTS AND DUTIES: FIRST SEMESTER*

**Unit I**

**UN Human Rights Charter & Treaty Bodies**

**UN Charter Based Bodies and Human Rights:** General Assembly; Security Council; Economic and Social Council (ECOSOC); The Secretariat; International Court of Justice.

**Human Rights Treaty Based Bodies :** State Reporting; General Comments; Inquiries; Complaint Procedures; Treaty Body Coordination, Harmonization and Reform.

**Unit II**

**Human Rights Council**

1946-2006 : From the Commission on Human Rights to the Human Rights Council; Composition, Working Methods, and Mandate; Universal Periodic Review; Responses to Country Situations; Special Procedures; Complaint Procedure; Human Rights Council Advisory Committee.

**Unit III**

**Office of the High Commissioner for Human Rights (OHCHR)**

Structure & Functions : Technical Cooperation Activities; Human Rights Education and Information; Human Rights Components of Peacekeeping Operations; Human Rights Field Presences; Voluntary Funds; Human Rights and 2030 Agenda for Sustainable Development.

**Unit IV**

**Universal Periodic Review (UPR) and India**

Universal Periodic Review: Process & Procedure; Government of India's Submission for UPR; Role of Working Group on Human Rights in India (WGHR) and the UN.

**References**

**Essential Readings**


Alston, P. & Goodman, R. (2012). *International Human Rights*. New York: Oxford University Press.

Freedman, R. (2013). *The United Nations Human Rights Council : A critique and early assessment.* London : Routledge.

Kalin, W & Kunzli, J. (2011). *The Law of International Human Rights Protection.* New York: Oxford University Press.

Moeckli, D. Shah, S. & Sivakumaran, S. (2013). *International Human Rights Law.* New York : Oxford University Press.

Ramcharan, B. (2013). *The UN Human Rights Council*. New York : Routledge.

Smith, R. (2015). *Textbook on International Human Rights*. New York: Oxford University Press.

United Nations. (2008). *The United Nations Human Rights System: How to make it Work for You.* New York: United Nations.

**Further Readindgs**

Universal Periodic Review Second Cycle -India Report http://www.ohchr.org/EN/ HRBodies/UPR/Pages/INSession13.aspx

WGHR. *Human Rights in India: Status Report 2012*. New Delhi: WGHR

**CORE PAPER 3: HUMAN RIGHTS AND DUTIES IN INDIA**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE:** The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be **compulsory** containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

This paper focuses on the normative and institutional aspects of human rights and duties against the backdrop of the politico-social reality in India. It offers insights on the Constitution and human rights and duties, implementation mechanisms, problems of enforcement of human rights and role of civil society in protecting, promoting and generating awareness about human rights violations.

**Course Contents**

**Unit I: The Constitution and Human Rights and Duties**

Preamble to the Constitution of India; Fundamental Rights; Directive Principles of State Policy; Fundamental Duties; Relationship between them; International human rights and the Indian Constitution.

**Unit II: Implementation Mechanisms**

**Constitutional Mechanisms**: Role of Judiciary, Use of Public Interest Litigation (PIL); **Statutory Mechanisms**: National Human Rights Commission (NHRC); Central Information Commission (CIC); National Consumer Disputes Redressal Commission (NCDRC).

**Unit III: Problems of Enforcement of Human Rights in India**

Abuse of executive power: deaths and torture in police custody; Adverse Impact of Special Laws such as Armed Forces Special Power Act (AFSPA)1958 along with amendments and Unlawful Activities Prevention (Amendment) Act (UAPA) 2012.

**Unit IV: Socio-Economic and Political Problems**

- Poverty
- Unemployment
- Infringement of Consumer Rights

## References

**Essential Readings:**

Alam, Aftab (ed.) (1999), *Human Rights in India: Issues and Challenges,* New Delhi: Raj Publications.

Austin, Granville (2003), *Working a Democratic Constitution: The Indian Experience,* New Delhi: Oxford University Press.

Austin, Granville (2002), *The Indian Constitution: Cornerstone of a Nation*, New Delhi: OUP.

Basu, D.D. (2009), *Introduction to the Constitution of India*, Nagpur, New Delhi, Nexus Lexis, Butterworths.

Bhatia, Gautam (2016), *Offend, Shock, Or Disturb: Free Speech Under the Indian Constitution*, New Delhi Oxford: University Press.

Begum, S.M. (ed.) (2000), *Human Rights in India: Issues and Perspectives,* New Delhi: APH Publishing Co.

Baxi, Upendra (2002), *The Future of Human Rights,* New Delhi: Oxford University Press.

Centre for Development and Human Rights (2004), *The Right to Development – A Primer,* New Delhi: Sage Pub.

Choudhry Sujit, Khosla Madhav, Mehta Pratap Bhanu Eds. (2016), *The Oxford Handbook of the Indian Constitution,* Oxford University Press.

Das. A.K. (2007), *Human Rights in India*, New Delhi, Sarup Book Publishers.

*Fundamental Duties of citizens- India* (1999), Ministry of Human Resource Development-Department of Education, New Delhi: Govt. of India.

Desai, A.R. (ed.) (1986), *Violations of Democratic Rights in India,* Bombay: Popular Prakashan.

Dikshit, R.C. (1998), *Human Rights and the Law*: *Universal and Indian,* New Delhi:Deep and Deep.

Jha, R.C. (1995), *Resurrecting A Human Right in India,* New Delhi: Sheriden Book Company.

Kashyap, Subhash C. (1978), *Human Rights and Parliament,* Delhi: Metropolitan.

Kirpal, B. N. et al. (2004), *Supreme But Not Infallible*, New Delhi: OUP.

Mehta, P.L. and Neena Verma (1995), *Human Rights under the Indian Constitution,* New Delhi: Deep and Deep Publications.

Mishra, Pramod (ed.) (2000), *Human Rights in South Asia,* Delhi: Kalpaz Publications.

Paul, R.C. (2000), *Situation of Human Rights in India,* New Delhi: Commonwealth Publishers.

Rao, Ashiwini (2010), *Status of Human Rights in India*, New Delhi, Pacific

Ray, Arun (2004), *National Human Rights Commission in India*: *Formation, Functioning and Future Prospects,* New Delhi: Atlantic.

Sharma, Gokulesh, (2003) *Indianization of Rights and Duties*, New Delhi: Manas.

**Further Readings:**

Kashyap Shaunak and Kashyap Subhash C. (2015), *Concise Encyclopedia of Indian Constitution,* Vision Books.

Ray, Aswani K. (1986) "Civil Rights Movement and Social Struggle in India," *Economic and Political Weekly*, Vol. XXX1, No.28, 12 July.

Rao, K. Subha (1962), *Fundamental Rights under the Constitution of India,* Madras: Madras University.

Sathe S. P., (2004), *Judicial Activism in India*, (2004) New Delhi: OUP.

Sehgal, B. P. Singh (ed.) (1999), *Human Rights in India: Problems and Perspectives,* New Delhi: Deep and Deep.

Sen, Sarbani (2007), *The Constitution of India: Popular Sovereignty and Democratic Transformations,* New Delhi: Oxford University Press.

Verma, R.S. (2000), *Human Rights: Burning Issues of the World*, Volumes I, II and III. Delhi: Radiant Publishers.

*M.A. HUMAN RIGHTS AND DUTIES: FIRST SEMESTER*

**CORE PAPER 4: CHILDREN AND HUMAN RIGHTS**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e, out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

The paper discusses the status of the children in Indian society, international norms on the rights of the child, protection of children under the Indian Constitution, special laws and policies in India, and the institutional mechanisms for the protection of children.

**Unit I: Status of Child in Contemporary Indian Set-Up**

**Social and cultural practices against children:** Foeticide, Infanticide, Child marriage; Child labour, Child abuse inside and outside homes, Trafficking in children, Street children .

**Constitutional Provisions on Child Rights**: Fundamental Rights, Directive Principles of State Policy and Fundamental Duties

**Unit II: Key Legislations on Child Rights in India**

The Commission for Protection of Child Rights Act, 2005
The Right of Children to Free and Compulsory Education (RTE) Act , 2009
The Protection of Children from Sexual Offences (POCSO) Act , 2012
The Juvenile Justice (Care and Protection of Children) Act, 2015

**Unit III: International Norms for Protection of the Child**

**UN and Child Rights: Historical Evolution ;**
**Convention with Special Focus on Children : Convention on the Rights of the Child, 1989;** Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict, 2000**;** Optional Protocol to the Convention on the Rights of the Child on the sale of children, child prostitution and child pornography, 2002;Optional Protocol to the Convention on the Rights of the Child on Communications Procedure, 2014.

**Unit IV: Implementation Machinery for Protection of Child Rights: India and the UN**

National Commission for Protection of Child Rights (NCPCR);
Ministry of Women and Child Development : Child Protection Schemes (ICDS & ICPS);
Child Rights Committee (under CRC, 1989);
United Nations Children's Fund (UNICEF).

## References

### Essential Readings

Bajpai, A. (2006). *Child Rights in India : Law, Policy and Practice*. New Delhi : OUP India.

Ganguly, E. (2011). *Every Right for Every Child: Governance and Accountability*. New Delhi: Routledge India.

Lalli, U. (2017). *Child Protection : Rights and Law.*

Malik, P.S. (2016). *A Complete Guide to Protection of Children from Sexual Offences Act (POCSO).* New Delhi : Universal Law.

Rao, M. (2014). *Law Relating to Women and Children*. Lucknow: Eastern Book Company**.**

UNICEF. (2008). *Protecting the World's Children : Impact of the Convention on the Rights of the Child in Diverse Legal Systems*. New York : Cambridge University Press.

Virani, P. (2014). *Bitter Chocolate: Child Sexual Abuse in India*. New Delhi: Penguin.

### Further Readings

The Integrated Child Development Scheme (ICDS), 1976.

The Commission for Protection of Child Rights Act, 2005.

Ministry of Women and Child Development, Government of India. (2007). *Study on Child Abuse: India 2007*. New Delhi: Ministry of Women and Child Development, Government of India.

The Integrated Child Protection Scheme (ICPS), 2009.

CRC 20 BS Collective. (2012). *India Shadow Report: Third and Fourth Combined Report on the UN Convention on the Rights of the Child*. New Delhi: HAQ Centre for Child Rights.

The Right of Children to Free and Compulsory Education (RTE) Act , 2009.

The Protection of Children from Sexual Offences (POCSO) Act , 2012.

National Institute of Public Cooperation and Child Development (NIPPCD). (2015). *Training Manual on Protection of Children from Sexual Offences (POCSO) Act & Rules, 2012 for Counsellors, Social Workers, and Special Educators.* New Delhi: NIPPCD.

The Juvenile Justice (Care and Protection of Children) Act, 2015.

*M.A. HUMAN RIGHTS AND DUTIES: SECOND SEMESTER*

**CORE PAPER 5: DEVELOPMENT, GLOBALIZATION AND HUMAN RIGHTS**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

## Objectives

This paper seeks to highlight the impact of globalization and development on human rights. It deals with the role of human rights in development, general aspects of international trade and development, the role of Transnational Corporations, trade related sanctions for human rights violations, trade, human rights and the question of sovereignty, and international trade and human rights perspective in India.

## Course Contents

### Unit I: Rights Based Approach to Development

Connotations of Development: Modernization and Dependency approaches; Vision of NIEO; integrating the human rights approach in development; Right to Development.

### Unit II: International Trade and Human Rights

International Trade and Development: WTO; Unequal terms of trade imposed by the Uruguay Round of GATT negotiations with special reference to India.

### Unit III: Globalization and Human Rights

Globalization: Meaning, voices for and voices against Globlization and Convergence between consumer rights and human rights; Globalization and its impact on agriculture, labor, women, environment, culture.

### Unit IV: Human Rights and the Question of Sovereignty

Transnational Corporations (TNCs) and Human Rights violations; National control over international trade; Codes of Conduct and TNCs; Human Rights Standards and international trade; International Trade and Human Rights Perspective in India – Regulation of TNCs and Corporate Social Responsibility (CSR) with special reference to the Companies Act 2013.

## References

**Essential Readings:**

Baxi, Upendra (1983) "The New International Economic Order, Basic Needs and Rights: Notes towards Development of the Right to Development", *Indian Journal of International Law,* Vol.23, pp.225-45.

Baxi, Upendra (1998) "The Development of the Right to Development", in Janusz Symonides, (ed.), *Human Rights: New Dimensions and Challenges,* Sydney: UNESCO, pp. 99-114.

Bhattacharya, C.B. Sankar Sen, Daniel Korschun (2011), *Leveraging Corporate Responsibility: The Stakeholder Route to Maximizing Business and Social Value*, Cambridge University Press.

Bhaumik, K. (2004) *WTO: A Discordant Orchestra*, New Delhi: Sage Publications.

Centre for Development and Human Rights (2004), *The Right to Development – A Primer,* New Delhi: Sage Publications.

Chakraborty, Debashish and Khan, Ullah Amir (2008),*WTO Deadlocked: Understanding the Dynamics of International Trade*, New Delhi: Sage Publications.

Cheria, Anita et al. (2004), *Human Rights Approach to Development: Resource Book,* Banglore: Books for Change.

Gibney, J Mathew (2003), *Globalizing Rights: Oxford Amnesty Lectures 1999,* Oxford, OUP.

Glenn John (2013), *Globalization : North South Perspectives, London:* Routledge.

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Howeld Geraint, Iain Ramsay and Thomas Wichelmsson with David Kraft (2010), *Handbook of Research on International Consumer Law;* Cheltanham U.K. Northampton, U.S.: Edward Elgar.

Jain, Devaki (1990) "Working with Human Rights to Development", *Mainstream,* Vol.29, no.7, 8 December, pp.29-33.

Karmakar, Suparna, Kumar, Rajiv and Debroy, Bibek edited (2008), *India's Liberalisation Experience: Hostage to WTO*, New Delhi: Sage.

Lechner J Frank, John Boli (2014), *The Globalization Reader*, 5th Edition, Wiley-Blackwell.

Mallik, Ross (1998), *Development, Ethnicity and Human Rights in South Asia,* NewDelhi: Sage.

Menon, N. R. Madhava (1999), "State of Economic and Social Rights", in K. P. Saksena, (ed.), *Human Rights: Fifty Years of India's Independence,* New Delhi: Gyan Publishing House. pp.145-155.

Mishra, Pramod (ed.), *Human Rights in South Asia,* Delhi: Kalpaz Publications.

O'Byrne, Darren J. (2003), *Human Rights: An Introduction,* New Delhi: Pearson.

Raj, Suhendu Ranjan (1999), "Development Perspectives and Human Rights", in A.P. Vijapur and Kumar Suresh, (ed.), *Perspectives on Human Rights,* New Delhi: Manak publications, pp.267-80.

Rehman, M. M. et al. (2000), *Human Rights and Human Development: Concepts and Contexts,* New Delhi: Manak Publications.

Ritzer George (2011), *Globalization: The Essentials* (Google eBook) John Wiley & Sons - West Sussex.

Rosas, Allan (1995) "The Right to Development", in Asbjorn Eide et al. (ed.) *Economic, Social and Cultural Rights: A Text Book,* Doredrech: Martinus Nijhoff.

Thite, Wilkinson and Budhwar (2016), *Emerging Indian Multi Nationals,* Oxford University Press.

Chakarbarti (2016), *Inclusive Growth and Social Change,* Oxford University Press.

**Further Readings:**

Roy, Chowdhury, Subrata, (ed.) (1992), *The Right to Development in International Law*, Martinus, Nojhoff Publishers.

Saksena, K. P. (1991), "Human Rights and the Right to Development", *International Studies*, Vol. 28, no. 1, pp. 41-54.

Sanajaoba, N. (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.

Sen Shankar (1998), *Human Rights in a Developing Society,* New Delhi: A.P.H. Publishing.

Sengupta, Arjun (2003), "Human Right to Development", *Journal of The National Human Rights Commission*, Vol.2.

Shepherd, George W. and Ved Nanda (eds.) (1985), *Human Rights and Third World Developments,* Westport: Greenwood Press.

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## CORE PAPER 6 : WOMEN AND HUMAN RIGHTS

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e, out of the two questions asked, the candidate shall attempt one question from each of the four units.

### Objectives

This paper elaborates the status of women in contemporary Indian society, the status of women under the Indian Constitution, international norms for protection of women, special laws and policies for protection of women in India, and institutional mechanisms for protection of women in India.

### Unit – I

### Status of Women in India

Provisions in the Constitution of India for Protection of Women (Fundamental Rights; Directive Principles of State Policy and Fundamental Duties).
Emerging Issues : NRI Marriages; Marital Rape; Honour Crimes; Acid Attacks; Debate on Uniform Civil Code; Reservation for Women in the Parliament; Gender Budgeting.

**Unit II**

**Protective Laws on Violence against Women in the Private and Public Domain**

Pre-Conception and Pre-Natal Diagnostic Techniques (Regulation and Prevention) Act, 1994 as amended in 2004;
The Protection of Women from Domestic Violence Act, 2005;
The Sexual Harassment at Workplace (Prevention, Prohibition, and Redressal) Act, 2013;
The Criminal Law (Amendment) Act, 2013.

**Unit –III: Promotion of Women's Human Rights at the International level**

UN World Conferences on Women (Mexico, Copenhagen, Nairobi and Beijing);
Significance of Vienna World Conference on Human Rights in recognition of Women's Rights as Human Rights;
The Convention on the Elimination of all Forms of Discrimination Against Women (CEDAW) and Optional Protocol to CEDAW (OP-CEDAW);
UN Women.

**Unit-IV: Implementation Machinery in India**

National Commission for Women;
National Mission for Empowerment of Women;
Ministry of Woman and Child Development;
Women Police Stations.

**References**

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Agosin, Marjorie (2003), *Women, Gender, and Human Rights: A Global Perspective,* New Delhi: Rawat.

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Kannabiran, K. (2014). *Women and Law: Critical Feminist Perspectives*. New Delhi: Sage.

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Merry, S.E. (2006). *Human Rights and Gender Violence: Translating International Law into Local Justice.* New Delhi: Oxford University Press.

Natarajan, M. (2008). *Women Police in Changing Society: A Backdoor to Equality.* London: Ashgate.

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Welchman, L., and Hossain, S. (2005). Introduction: 'Honour', Rights and Wrongs. In *Honour: Crimes, Paradigms, and Violence against Women* (ed.) New York: Palgrave Macmillan.

**Further Readings:**

Saxena, S. (1999).*Crimes against Women and Protective Laws* .New Delhi: Deep and Deep.

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*M.A. HUMAN RIGHTS AND DUTIES: SECOND SEMESTER*

**CORE PAPER 7: ENVIRONMENT, HUMAN RIGHTS AND DUTIES**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

## Objectives

This paper focuses on the interrelationship between environment and human rights and duties. It covers the topics of conceptual aspects, the right to clean environment, an international perspective, issues of environmental protection in developing countries, supplementary rights and duties, environment versus development, emerging concepts, and the threats to Indian environment.

## Course Contents

### Unit I: Environmental Concerns

Evolutionary Perspective: Stockholm to Rio and Beyond; Right to Clean Environment: Content and Scope; Environment versus Right to Development; Culprits and Victims of Development and Mega Projects; Hazardous Waste Treatment; Debate on Social Clause under WTO.

### Unit II: Issues of Environmental Protection in Developing Countries

Interface with Natural Resources: Tribal and Forest dwellers; Rural and Urban dwellers; Dumping of Waste and Discarded Technology; Environmental Education; Public Participation: Environmental Democracy.

### Unit III: Environment and the Indian Scenario

Pollution Control Mechanisms in India: Inaction and Mis-action; Role of NGT; NGOs; Courts: Process and Remedies; Threats to Indian Environment: Forest Denudation, Pollution of River Systems, Indiscriminate Industrial Explosion, Bio-diversity Imbalances.

### Unit IV: Emerging Concepts

Common Heritage Principle; Public Trust; 'Polluter Pays' Principle; Precautionary Principle; Intergenerational Equity; Sovereign Equality; Code of Environmental Ethics; Sustainable Development Goals 2030.

## References

**Essential Readings:**

Balasubramanium, V. (1998), "Environment and Human Rights: A New Form of Imperialism", *Economic and Political Weekly*, Vol.33, No.8, 22-27 Feb., pp.389-90.

Banerjee, Preeta M. and Shastri, Vanita, [ed], (2010), *Social Responsibility and Environmental Sustainability in Business: How Organizations Handle Profits and Social Duties,* New Delhi: Sage.

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**Further Readings:**

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**CORE PAPER 8: CIVIL SOCIETY, AND HUMAN RIGHTS MOVEMENTS IN INDIA**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

## *M.A. HUMAN RIGHTS AND DUTIES: SECOND SEMESTER*

### Objectives

This paper aims at a sociological study of human rights and duties in India. It encompasses a conceptual perspective, impact of social and religious reforms movements and human rights, political and ecological movements and human rights, and the role of international and national institutions in promoting human rights.

### Course Content

### Unit I: Conceptual Perspectives

Civil Society and Social Movements: Concepts, Typology, Ideology, Organization and role; Mobilization leadership; Social Movements as promoters of social change and Human Rights.

### Unit II: Social and Religious Reform Movements and Human Rights

Reformist Movement in Colonial India, Dalit Movements; Tribal Movements; Women's Movements; New Social Movements.

### Unit III: Political and Environment Movements and Human Rights

Political Movements – Freedom Movements; Peasant Movement; Regional and Ethnic identity Movements ; Sarvodaya Movement and Land Reform Movements; Ecological Movements – Chipko Movement; Narmada Bachao Andolan.

### Unit IV: Human Rights Movements/ Activism in India

PIL Movement in India; Role of NGOs : People's Union for Civil Liberties (PUCL); Peoples Union for Democratic Rights (PUDR); Mazdoor Kisan Shakti Sangathan (MKSS); Human Rights Law Network (HRLN); National Alliance for People's Movement (NAPM).

### References

**Essential Readings:**

Eide, Asbjorn (1986), "Human Rights Movement and the Transformation of International Order", *Alternatives*, Vol.11, No.3, pp.367-402.

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**Further Readings:**

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Tyagi, Y. K. (1995), "Golden Jubilee of Unfinished Task: The United Nations Human Rights Movement", *International Studies*, Vol.32, No.4, pp.441-60.

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*M.A. HUMAN RIGHTS AND DUTIES: THIRD SEMESTER*

**Core Paper 9: SCIENCE AND TECHNOLOGY, HUMAN RIGHTS AND DUTIES**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shallhave two questions and the candidate shall be given internal choice i.e, out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

This paper discusses the impact of developments in science and technology on human rights and duties. It contains some conceptual aspects of impact of science and technology on human life and society and also focuses on certain specific human rights issues identified on the basis of this impact, such as those relating to the right to human dignity, freedom of information, thought and expression; and rights to food, health, development, clean environment and peace.

**Course Contents**

**Unit I: Concepts and Perspectives on Science and Technology**

Concepts: Science and Technology, Scientific Temper, Biotechnology, Bio-Ethics;
Impact of Science and Technology on Society;
International Perspective on Science and Technology, Human Rights & Duties;
Indian Perspective on Science and Technology, Human Rights and Duties.

**Unit II: Technology and the Different Rights – I**

Right to Adequate Food – Agricultural Biotechnology: Impact of Biotechnology on Agriculture, Food Biotechnology: Issues of Food Safety;
Right to Freedom of Information & Expression - Revolution in Information & Communications Technology (ICTs), Cyber Crimes;
Right to Health - Health Technologies, Application of Biotechnology in Medicine, Clinical Trials & Experiment on Living Beings, Sports and Biotechnology - Doping
Intellectual Property Rights in Technological Society.

**Unit III: Technology and the Different Rights – II**

Right to Clean Environment – Impact of unbridled use of natural resources, Industrialization and issues of Public Safety, Environmental Biotechnology.
Right to Peace & Disarmament – Weapons of Mass Destruction (WMDs) and Issue of Dual Use Technologies.
Right Against Torture and Other Cruel, Inhuman or Degrading Treatment of Punishment – Torture Techniques/ Methods.
Right to Die in Dignity and Peace –Euthanasia.

**Unit IV: Bio –Ethics & Human Rights & Duties: Ethical, Legal & Social Issues**

Abortion & Assisted Reproductive Technologies;
Organ Transplantation;
Stem Cell Research;
Cloning – Animal and Human Cloning ;
Attitudes to Animals – Human uses of animals, Experiments on Animals.

## References

**Essential Readings:**

Amarasekara, Kumar (1998), "Autonomy, Paternalism and Discrimination :The Darker Side of Euthanasia", in Antony Anghie and Garry Sturgess, (eds.), *Legal*

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Schaller, B.R. (2009), *Understanding Bioethics and the Law : The Promises and Perils of the Brave New World of Biotechnology*, New Delhi : Pentagon Press.

Shiva, V. (2010), *Violence of the Green Revolution*, Dehradun: Natraj & Research Foundation for Science, Technology and Ecology.

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**Further Readings:**

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UN, (1982), *Human Rights and Scientific and Technological Developments,* New York: UN Department of Public Information.

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Zinian, John et al. (eds.) (1986), *The World of Science and the Rule of Law,* Oxford University Press.

**Useful Websites**

http://www.dst.gov.in/ for Department of Science and Technology.

http://dbtindia.nic.in/index.asp for Department of Biotechnology.

http://icmr.nic.in/ethical_guidelines.pdf for Indian Council of Medical Research.

**http://www.unesco.org/new/en/social-and-human-sciences/themes/bioethics/** for United Nations Educational Scientific and Cultual Organization (UNESCO) on Bioethics.

**http://www.who.int/topics/en/** for World Health Organization (WHO).

http://www.unesco.org/new/en/social-and-human-sciences/themes/anti-doping/ for UNESCO on Doping.

http://www.itu.int/ITU-D/cyb/cybersecurity/projects/crimeguide.html for International Telecommunication Unit (ITU)

http://www.un.org/disarmament/HomePage/ODAPublications/AdhocPublications/PDF/Basic_Guide-2011-web-Rev1.pdf for United Nations on Disarmament

*M.A. HUMAN RIGHTS AND DUTIES: THIRD SEMESTER*

**CORE PAPER 10: HUMAN RIGHTS AND DUTIES FOR THE AGED AND THE DIFFERENTLY ABLED**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

This paper deals with the topics of conceptual perspectives, international norms on the rights of the aged and the differently abled, protection of the aged and the differently abled under the Indian legal system and institutional mechanisms for such protection.

**Course Contents**

**Unit I: Aging and Ageism: Conceptual Perspective**

Aging-Definition, Problems of the aged: medical, economic, social, psychological; Theoretical Perspectives: disengagement, activity, human development, continuity, exchange, symbolic inter-actionist; Ageism- definition and cross-cultural scenario; Causes: Breakdown of old social and family institutions; the economics of aging.

**Unit II: Differently Abled**

Definitions and causes; Approaches to differently Abled: the Charity Model, the Bio-Centric Model, the Functional Model, the Human Rights Model. Social taboos against differently abled.

**Unit III: Protective International Norms and Institutional Mechanisms**

World Assembly on the Ageing 1982 and 2002; Declaration on the Mentally Retarded Persons 1971; UN General Assembly Declaration on the Rights of the Disabled Persons 1975; Human Rights Convention on the Rights of persons with disabilities, 2006.

**Unit IV: Protective arrangements for the Aged and the Differently Abled in Indian System**

Laws and Policies for Aged and Differently abled in India: Maintenance and Welfare of Parents and Senior Citizens Act, 2007; Mental Health Act 1987 (and subsequent amendments); Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995; Rights of Persons with Disabilities Act, 2016.

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### Essential Readings:

Barnes, C.G., G. Mercer and T. Shakespeare (1999), *Exploring Disability: A Sociological Analysis,* Cambridge: Polity Press.

Chopra, Tushti (2013), "Human Rights Expanding the Horizons of Disability Law in India: A Study from A Human Rights Perspective", *Journal of Law, Medicine and Ethics,* Vol 7 No. Issue no. 41.

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### Further Readings:

Karna, G. N. (1999), *United Nations and the Rights of Disabled Persons: A Study in Indian Perspective,* New Delhi: APH Publishing Co.

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Margaret , Gullette (2017), Ending Ageism or How Not to Shoot Old People; USA: Rutgers University Press.

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UN, (1993), *Human Rights and Disabled Persons,* Geneva: World Campaign for Human Rights.

**Core Paper 11: RESEARCH METHODS**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

Human rights education at post-graduate level should include fieldwork or acquisition of first- hand knowledge of issues of human rights and duties, and some basic understanding of research methodology and techniques. The paper stresses the need to select methodologies and techniques appropriate for the investigation/reporting on the issue/problem selected.

**Course Contents**

**Unit I: Social Research**

Nature and Scope; Formulation of Research Problem; Review of Literature Hypothesis; Inductive and Deductive Methods; Research Design;

**Unit II: Methodology**

Methodological Orientation and logic of enquiry; Comparative Method; Historical Method; Sampling; Other research methods; Use Of Computer and Information Technology.

**Unit III: Techniques and Tools of Data Collection**

Primary and Secondary Data; **Methods of Primary Data Collection:** Observation; interview; questionnaire; Case study method; Survey Method; **Sources of Secondary Data**: Document, Content analysis; Data analysis: Classification, Tabulation, Graphic representation, Uni-variate, Bi-variate and Multi-variate, discrete and continuous variables.

**Unit IV: Statistical Base**

Measure of Central Tendency; Mean, Mode and Median, Measure of Dispersion, Average Deviation and Standard Deviation, Chi-square (X2).

**References**

**Essential Readings:**

Ahuja, Ram (2011), *Social Survey and Research,* Rawat Publication: Jaipur

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**Further Readings:**

Strauss, Anselm (1990), *Basics of Qualitative Research – Grounded Theory Procedures and Techniques,* New Delhi: Sage.

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UN (1991), *Centre for Human Rights: A Manual of Human Rights Reporting,* New York: World Campaign for Human Rights

**Core Paper 12: The candidate has to opt for any ONE of the following Optional Papers**

**Optional Paper I (a): LABOUR WELFARE, HUMAN RIGHTS AND DUTIES**

**Max. Marks : 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

Labor welfare has for long been one of the crucial areas of human rights and duties. The objectives of the paper is to familiarize students with historical background of labour welfare, status and classification of labor, workers' rights and duties, emerging problems, conflicting rights of workers and employers, international standards and the Indian framework across four units.

**Course Contents**

**Unit I: Labour: Historical Perspective**

Definition, Status and Classification of Labour: Women; Children; Casual Workers: Agricultural Labour and Migrant Workers; Bonded Labor. Working Class Movement from Laissez Faire through Welfare State to Globalizing State; Trade Unionism and its Development.

**Unit II: Labor Welfare Problems and Issues**

Health Hazards: Accidents, Occupational Diseases; Social Security; Collective Bargaining; Workers' Participation in Management; Industrial Discipline, Retrenchment, Termination and Displacement; Labor Safety, Work Culture and Welfare Measures; Industrial Conflicts and Insecurity; Impact of Technological Developments; Conflicting Rights of Workers and Employers: The Right to Strike, Lockout and Closure of Industry.

**Unit III: Labour Welfare: International Framework**

International Labor Organization (ILO): Origin and Structures; International Labor Standards (An overview of Introduction, Creation and Use); Debate on Social Clause and WTO; Code of International Industrial Discipline.

**Unit IV: Labour Welfare Measures in India**

Constitutional Protection; Specific Legislative Measures and Schemes: Industrial Disputes Act, 1947, Unorganized Workers Social Security Act, 2008; Bonded Labour (Abolition) Act, 1976, Central Sector Scheme for Rehabilitation of Bonded Labourer, 2016. Role of Institutional Framework for Promotion of Labour Welfare: National Human Rights Commission; Labour Commission; Labour Bureau.

**References**

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Saksena, K.P. (1999), "Recent Supreme Court Judgment on Child Labor: A Critique", in K. P. Saksena (ed.), *Human Rights: Fifty Years of India's Independence,* New Delhi: Gyan Publishing House, pp.73-78.

Sankaran, Kamala (1998), "Human Rights and the World of Work", *Journal of Indian Law Institute,* Vol. 40, Nos. 1-4, pp.284-94.

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Srivastava, S.C. (2012), *Industrial Relations and Labour Laws,* New Delhi : Vikas Publishing House Pvt. Ltd.

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Singh, S.K., (1994), *Bonded Labor and the Law,* New Delhi: Deep and Deep. UN, (1996), *The Right to Migratory Workers,* Geneva: UN Centre for Human Rights, World Campaign for Human Rights.

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**OPTIONAL PAPER I (b): INTERNATIONAL HUMANITARIAN AND REFUGEE LAWS**

**Max. Marks : 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

## *M.A. HUMAN RIGHTS AND DUTIES: THIRD SEMESTER*

### Objectives

This paper is in four units, which seeks to highlight the conceptual and substantive aspects of humanitarian problems of armed conflict and refugees. It also focuses on the international humanitarian law and the international refugee law.

### Course Contents

### Unit I: Development and Sources of International Humanitarian Law (IHL)

Origin sources and development of IHL: Doctrine of military necessity versus the principle of humanity; Hague Conventions (1899 and 1907) and Geneva Conventions (1949, and Protocols of 1977 and 2005); The Non-International Armed Conflicts: Common Article 3 and the Additional Protocol-II; Humanitarian Intervention versus State Sovereignty National perspective on IHL.

### Unit II: Implementation of International Humanitarian Law (IHL)

Enforcement of IHL – International Fact Finding Commission; Role of International Committee of Red Cross and NGOs; Concept of Protecting Power, Role of United Nations, International Criminal Court and Tribunals (ICTY and ICTR).

### Unit III: International Refugee Law

Origin, Development and History of International Refugee Law; Determination of Refugee Status under the Refugee Convention 1951 and Protocol 1967;Protection under International Law: Right of Non-Refoulement, Right to Asylum; UNHCR and Refugee Protection; Special Problems of Vulnerable Groups: Women, Children and Victims of torture; Solutions to Refugee Problem; Relationship between IHL, Refugee Law and Human Rights Law.

### Unit IV: Protection of Refugees and Internally Displaced Persons (IDPs) in India

Refugees in India : Mandate and Non-Mandate Refugees in India ; Laws Relating to Refugees in India; Indian critique of UNHCR and the Convention – Protection without legislation: Case Law, Status of refugees in India under UNHCR; Internally Displaced Persons: UN Guiding Principles on Internal Displacement 1998 with reference to India.

### References

### Essential Readings:

*Bhuiyan Md. Jahid Hossain, Louise Doswald Beck & Azizur Rahman Chowdhury. (*2009), *International Humanitarian Law - An Anthology*. Nagpur, Lexis Nexis, Butterworths Wadhwa.

Bond, B.E. Harrel (1985), *Imposing Aid: Emergency Assistance to Refugees,* New York: Oxford University Press.

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(2016): *"GRID 2016: Global Report on Internal Displacement,"* Internal Displacement Monitoring Centre, Geneva, Switzerland, viewed on 12 August, http://www.internal-displacement.org/globalreport2016/. - See more at: http://www.epw.in/journal/2016/40/commentary/counting-conflict-induced-internally-displaced-persons

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Mani, V.S. (1993), "Humanitarian Intervention and International Law", *Indian Journal of International Law*, Vol.33, pp.1-26.

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*M.A. HUMAN RIGHTS AND DUTIES: THIRD SEMESTER*

**OPTIONAL PAPER I(c): DISADVANTAGED SECTIONS/GROUPS AND HUMAN RIGHTS AND DUTIES**

**Max. Marks : 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

This paper focuses on the need for protection of the socially and/or economically disadvantaged sections of the Indian society such as the Scheduled Castes and Tribes, and other similarly placed communities. Its four units encompass topics on the disadvantaged people's historical background, status in Indian society, constitutional protection, special laws and policies, institutional mechanisms for protection of SC/ST and OBCs, and relevant international standards.

**Course Contents**

**Unit I: Concepts, History and Issues**

Disadvantaged Group – Concept; Historical background: Feudalism, caste system and the socio-economic situation; Social and economic deprivations of the lower rungs of society through history – British rule and its impact on these communities; Issues of social and economic inequalities in Indian society; Role of social reformers: Gandhi, Ambedkar and others

**Unit II: Status of Disadvantaged Sections/Groups in Contemporary Indian Society**

Issues of identification of Scheduled Castes/Scheduled Tribes, Dalits, other backward classes and minorities: Deprivations and atrocities, poverty, illiteracy and unemployment, Economic and social inequalities, Issues of land rights, rural indebtedness, impact of environment protection laws including forest laws on tribal communities; Access to fruits of development; Bonded labor, exploitation, issues of human dignity; Caste wars; Politics of caste and class.

**Unit III: Constitutional Protection**

Fundamental Rights and Directive Principles under the Constitution; Special protection under Article 15 (4), Article 16 (4) & (4-A), Article 17, Article 29(1), Article 46, Articles 334 335, 338, 339, 340, 341, & 342, Fifth and Sixth Schedules; Special Protection: Laws And Policies; Special Laws: Protection of Civil Rights Act, 1955, Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, Employment of Manual Scavengers and Construction of Dry Latrines (Prohibition) Act, 1999; Other relevant legal provisions; Policies of Government: Reservations, quotas, special drives and schemes

**Unit IV: Institutional Mechanisms for Protection of SC/ST, and OBCs**

Constitutional Mechanisms: Legislature, Executive, Judiciary; National Commissions, State Commissions; Non-Governmental Organizations; The Information Media; Role of education; International Norms and Standards Relating to Tribal and other Indigenous Groups: UN Declaration on the Indigenous Peoples, 1995, UN Voluntary Fund for Indigenous Populations 1985; ILO Convention No. 169 concerning Indigenous and Tribal Communities 1989.

**References**

**Essential Readings:**

Bhargava, G.S. and R. M. Pal, (eds.) (2000), *Human Rights of Dalits: Societal Violation,* New Delhi: Gyan Publishing House.

Bhatia, K. L. et al. (1995), *Social Justice of Dr. B.R. Ambedkar,* New Delhi: Deep and Deep.

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**Further Readings:**

Pillai, R.V. (1999), "Developmental Issues in Human Rights with Reference to the Scheduled Castes and the Scheduled Tribes", in A. P. Vijapur and Kumar Suresh, (eds.), *Perspectives on Human Rights,* New Delhi: Manak Publications, pp.152-62. Reddy, Jagmohan (1981), *Minorities and the Constitution,* Bombay: Bombay University Press.

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*M.A. HUMAN RIGHTS AND DUTIES: FOURTH SEMESTER*

**Core Paper 13: RIGHTS OF THE DISPLACED PEOPLE AND THEIR REHABILITATION**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

This paper deals with the very relevant issue of the project of development being pursued by contemporary societies and the problems that ensue from it. Specifically it focuses on the phenomena of displacement and rehabilitation and the role played by the UN, the state and the NGO sector in dealing with these issues.

**Unit I: Development and Displacement**

Development Induced Displacement: Meaning and consequences – physical, environmental, economic, social, cultural, psychological; Place of Displacement in the paradigm of induced development; Dynamics of Rehabilitation and Resettlement Process.

**Unit II: Resettlement Principles and Standards**

UN Guiding Principles on Internal Displacement; Inter-Agency Standing Committee Policy Paper; The World Bank; OECD Aid Agencies; Private Sector/IFC

**Unit III: Analyses of Large-scale Hydropower Project**

Egypt (Aswan); India (Narmada Sardar Sarovar); India (Bhakhra Dam Project); China (Shuikou); Argentina (Yacyreta); Togo (Nangbeto).

**Unit IV: Resettlement Mechanism in India**

Land Acquisition Act, 1894; Rehabilitation & Resettlement Law and Policies; Institutional Arrangements: Role of Judiciary and Civil Society Organizations.

## References

**Essential Readings:**

Cheria, Anita et al. (2004), *Human Rights Approach to Development: Resource Book,* Banglore: Books for Change.

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Shepherd, George W. and Ved Nanda (eds.) (1985), *Human Rights and Third World Developments,* Westport: Greenwood Press.

## CORE PAPER 14: HUMAN RIGHTS AND CRIMINAL JUSTICE SYSTEM

**Max Marks : 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

### OBJECTIVES

Criminal Justice system is one of the critical areas of human rights and duties where the legal system is tested on a continuous basis for preservation of peace and security in society on the one hand, and human dignity of both victims of crime and persons accused of it on the other. This Paper covers, besides the conceptual perspectives, the evolution of criminal justice system in India, administration of justice and international perspectives.

### Course Contents

### Unit- I: Conceptual Perspective

Concepts of Criminal Justice System: Crime, Punishment and Criminal Liability; Theories and Kinds of Punishment; Classification of Offences including Offences involving Violation of Human Rights.

### Unit-II : Criminal Justice System in India

Evolution of Criminal Justice System in India; Components of Criminal Justice System: Police, Courts: Hierarchy of Criminal Courts, and Correctional Institutions; Victims, Witnesses and their rights.

**Unit-III: Police and Prison System in India**

Policing in India: An Overview; Police Atrocities and Accountability; Police Reforms: Legislative Trends and Judicial Approaches.

Prison System in India: An Overview; Types of Prisons; Problems of Prisons; Prisoners Rights; Prison Reforms; Prison Dynamism: Parole and Probation.

**Unit IV: International Crime Control Scenario**

International Crime Control and Protection Agencies, e.g. Interpol; Role of Extradition and Mutual Assistance in Criminal proceedings; Palermo Convention on Transnational Organized Crime 2000, Convention against Illicit Trafficking of Narcotic and Psychotropic Substances 1988-90; International Norms on Administration of Criminal Justice – UN General Assembly Resolutions.

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Ashutosh (2009), *Rights of Accused*, New Delhi, Universal Law Publishing Co.

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**Core Paper 15: FIELD WORK BASED DISSERTATION**

Kindly read the foot note on page 4.

*M.A. HUMAN RIGHTS AND DUTIES: FOURTH SEMESTER*

**CORE PAPER 16: THE CANDIDATE HAS TO OPT FOR ANY ONE OF THE**

**FOLLOWING OPTIONAL PAPERS**

Optional Paper II (a) - Minorities, Human Rights and Duties

Optional Paper II (b) – Human Rights Advocacy Skills

Optional Paper II (c) - Peoples' Right to Self-Determination

**OPTIONAL PAPER II (a): MINORITIES, HUMAN RIGHTS AND DUTIES**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i. e, out of the two questions asked, the candidate shall attempt one question from each of the four units.

**Objectives**

Concern for minority rights has been the hallmark of the twentieth century with a bearing on the twenty first century. This paper, through its four units, deals with conceptual, historical, philosophical and social perspectives, the rights and duties under the Indian legal system and institutional mechanism, and international protection of minorities.

**Course Contents**

**Unit I: Conceptual, Historical, Philosophical and Social Perspectives**

Minorities as socio-economic; religious-linguistic; Regional minorities; Role of Minorities in the development of human rights

**Unit II: Rights and Duties of Minorities under the Indian Legal System**

Constitutional Framework: Fundamental Rights, Directive Principles and Fundamental Duties; Special provisions in Articles 26 to 30, 331, 333, 336, & 337 of the Constitution. Special Laws and Policies: National Commission for Minorities Act 1992 as amended in 1995.

**Unit III: Institutional Mechanisms for Protection of Minorities**

Constitutional Mechanisms: Legislature, Executive and Judiciary; Non-Governmental Organizations; The Information Media; Role of Education.

**Unit IV: International Protection of Minorities**

Declaration on the Rights of Persons Belonging to National or Ethnic, Religious and Linguistic Minorities 1992, Human Rights Covenants 1966, Racial Discrimination Convention 1965; UN Commission on Human Rights, Sub-commission on Minorities, Committees under the Human Rights Covenants and Racial Discrimination Convention

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## OPTIONAL Paper II (b): HUMAN RIGHTS ADVOCACY SKILLS

**Max. Marks : 100**
**Theory : 80 Marks**
**Practical Intervention : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. The remaining 20 marks in lieu of Internal Assessment will be allocated to writing and presenting a report on practical intervention. Practical Intervention Report will be based on Unit IV. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units. Questions from Unit IV will be based on hypothetical or actual cases from the chosen area.

### Objectives

Objectives of the paper are to equip students with practical advocacy skills in human rights in the background of theoretical knowledge on the subject. The paper shall prepare students to apply their learning to seek redress and generate awareness about issues of public interest with a bearing on human rights.

### Unit I- Human Rights Advocacy Process

Defining Advocacy Goals; Developing Advocacy Strategy; Types of Human Rights Advocacy: Public Education, Media Advocacy, Lobbying and Legislative Advocacy, Litigation and Legal Aid, Domestic Human Rights Complaints and Administrative Remedies, Advocacy at International Human Rights Mechanisms.
**Victim Centered Counseling:** Types of Counseling to overcome Discrimination, Violence, Stigma, Trauma etc.

### Unit II - Human Rights Advocacy for Redress

**Accessing Quasi Judicial Bodies (Human Rights Commissions, Consumer Disputes Redressal Commissions):** Procedure of Filing Complaints, Learning to Draft Complaints
**Legal Aid & Alternate Dispute Resolution (ADR) Mechanism:** Understanding the Role of State Legal Services Authority; ADR Processes, practices and significance.

**Learning to Access law enforcement agencies:** Basics of lodging First Information Report (FIR) and Domestic Incident Report (DIR)
**Learning to Draft Public Interest Litigation (PIL)**

**Unit III - Learning to Draft RTI and Conduct Social Auditing**

**Drafting RTI Applications:** Basics of RTI Act, 2005; Information Gathering through RTI application on important social justice issues such as Right to Food, Right to Health, Right to clean Drinking Water and Rights of Women and Children etc.
**Concept and Practice of Social Auditing:** Practical Exercise of Social Auditing under MNREGA Act, 2005; Environmental Auditing and Environmental Impact Assessment; Auditing for rights outlined above.

**Unit IV- Human Rights Advocacy: Practical Intervention**

**Identifying a Village in Chandigarh:** to monitor human rights situation on various social justice issues using strategies learnt in aforementioned Unit.
**Organising Awareness Camps on Human Rights Issues**
**Developing Human Rights Campaign** to generate and promote human rights culture.
**Documentation and Audio Visual Advocacy:** Report Writing and Making Documentary on Intervention Area .

**References**

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**Further Readings:**

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**Web Resources for Video Advocacy**

https://witness.org/resources/
https://archiveguide.witness.org/
http://v4c.org/

**OPTIONAL PAPER II (c) :PEOPLES' RIGHT TO SELF-DETERMINATION**

**Max. Marks: 100**
**Theory : 80 Marks**
**Int. Ass. : 20 Marks**
**Time : 3 Hours**

**NOTE**: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

## Objectives

This paper is divided into four units. They comprise the conceptual perspective, the evolution of the concept of self-determination, evolution of ideas of nationalism, autonomy and self-government, independence and federalism in India, and self determination in international relations.

## Course Contents

### Unit I: Concept and Evolution

Meaning of self-determination, Self-determination as an idea and as a process, New Dimensions and emerging debates.

### Unit II: Self-Determination in International Context

Emergence of the principle of self-determination on the international plane: League of nations, Minority treaties, Atlantic Charter 1941, UN Charter (Article 1(2),Articles 55-56 and the concept of sacred trust of civilization, Chapters XI, XII and XII) Framework and role of UN de-colonization process, Debate between domestic jurisdiction and the people's right of self-determination, Normative developments: UN Declarations on the granting of independence to colonial Countries and Friendly Relations and Cooperation among States; Various UN Declarations on Economic self determination.

### Unit III: The Indian Case: Pre-Independence Period

Evolution of Ideas of Nationalism, Autonomy and Self- Government, Independence and Federalism in India; National uprisings during the colonial rule and 1857 quest for independence; Emergence of the Indian National Congress, demands for self determination: Mahatma Gandhi and self-determination (political and economic freedom, raja shakti and janashakti, village republics); Federalism: Motilal Nehru Committee Report 1928 and the demand for Purna Swaraj, the Government of India Act 1935, Quit India Resolution of 8 August 1942.

### Unit IV: The Indian Case: Post Independence Period

Objectives Resolution of the Constituent Assembly (22 January 1947); The constitutional framework of India; Union-State relations, Problems and challenges: Problems relating to formation of States, including special relationship with the State of Jammu and Kashmir, Problems of Union-State relations - the Rajamannar and the Sarkaria Commissions, Punchhi Commission, Sixth Schedule of the Constitution Challenges of diversity, Asymmetric Federalism, Section 371 of the Constitution. development and separatism Objectives Resolution of the Constituent Assembly (22 January 1947); The constitutional framework of India; Union-State relations, Problems and challenges: Problems relating to formation of States, including special relationship with the State of Jammu and Kashmir, Problems of Union-State relations - the Rajamannar and the Sarkaria Commissions, Challenges of diversity, development and separatism. Punchhi Commission, Sixth Schedule of the Constitution, Asymmetric Federalism, Section 371 of the Constitution.

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Equality and Non-discrimination", in Karel Vasak, (ed.), *The International Dimensions of Human Rights*, Vol. I., Paris: UNESCO, pp.61-72.

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